

nicated to the trustees, did not amount to the creation of a trust. This was the only point decided, and perhaps a distinction may be said to exist between the settlement of an *actual interest* and an *expectancy*, for a trust to be enforced must be *perfectly created*, whereas any dealing with what a person *has not*, but only *expects to have*, must necessarily in some sense be *in fieri*. However, Sir J. Wigram, in the course of his judgment, denied that any distinction existed between settlements of a *legal interest*, as in *Edwards v. Jones*, and of an *equitable interest*, as in *Sloane v. Cadogan*, two cases which, both on principle and authority, ought not to be confounded.

15. **Notice unnecessary.**—Great importance was also attached by his Honour to the circumstance that *notice of the assignment* was not given to the trustees. But notice in these cases is not indispensable. As against the *settlor*, an equitable interest is perfectly transferred without notice. It is only as between *purchasers* that the service of notice on the trustee, or the want of it, has a material effect upon the transfer (*d*).

16. **Settlement retained in settlor's possession.**—If a person execute a voluntary *settlement*, which is duly sealed and delivered at the time, but the settlor keeps it in his possession and never parts with it, the settlement is nevertheless * as binding as if it had been handed over to the [*75] parties entitled (*a*). But in the case of a conveyance upon a *sale*, though the deed be duly sealed and delivered, and the word “*escrow*” be not used, yet if it be retained in the hands of the vendor's solicitor it has no operation until handed over to the purchaser on payment of the purchase-money (*b*). The distinction is that in the former case noth-

(*d*) See *Burn v. Carvalho*, 4 M. & Cr. 690; *Donaldson v. Donaldson*, Kay, 711; *Sloper v. Cottrell*, 6 Ell. & Bl. 504; *Gilbert v. Overton*, 2 H. & M. 110. Lord Romilly had attached importance to notice, even as against the settlor. See *Bridge v. Bridge*, 16 Beav. 315; *Re Way's Trust*, 4 New Rep. 453, but this view has been over-

ruled, see *Re Way's Trust*, 2 De G. J. & S. 365.

(*a*) *Re Way's Trust*, 2 De G. J. & S. 365; *Fletcher v. Fletcher*, 4 Hare, 67; *Hope v. Harman*, 11 Jur. 1097; *Armstrong v. Timperon*, 19 W. R. 558; 24 L. T. N. S. 275; and see *Jones v. Jones*, 23 W. R. 1.

(*b*) *Hudson v. Temple*, 20 Beav.